IN THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS 29 September 2024

IN THE UNITED STATES AIR FORCE
COURT OF CRIMINAL APPEALS

UNITED STATES Appellee v. BRIAN D. HOWARD Airman, USAF Appellant	)))))))	**BRIEF ON BEHALF OF APPELLANT** Before Panel No. 1 ACM 40478 (f rev) 29 September 2024

UNITED STATES,
Appellee,
v.
BRIAN D. HOWARD,
Airman, USAF
Appellant

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Before Panel No. 1
No. ACM 40478 (f rev)

BRIEF ON BEHALF OF APPELLANT

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WHETHER, AS APPLIED TO AIRMAN HOWARD, 18 U.S.C. § 922 IS UNCONSTITUTIONAL BECAUSE THE GOVERNMENT CANNOT DEMONSTRATE THAT BARRING HIS POSSESSION

[1] Assignments of Error (AOEs) VI and VII are raised pursuant to *United States v. Grostefon*, 12 M.J. 431 (C.M.A. 1982).

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TO THE HONORABLE, THE JUDGES OF THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS:

Assignments of Error

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WHETHER AIRMAN HOWARD'S ASSAULT AND INSUBORDINATE CONDUCT CONVICTIONS ARE LEGALLY SUFFICIENT.

[1] Assignments of Error (AOEs) VI and VII are raised pursuant to *United States v. Grostefon*, 12 M.J. 431 (C.M.A. 1982).

OF FIREARMS IS "CONSISTENT WITH THE NATION'S HISTORICAL TRADITION OF FIREARM REGULATION."

VII.

WHETHER AIRMAN HOWARD'S ASSAULT AND INSUBORDINATE CONDUCT CONVICTIONS ARE LEGALLY SUFFICIENT.

Statement of the Case

On 7 September and 24-28 October 2022, at Misawa Air Base (AB), Japan, a panel of officer and enlisted members sitting as a general court-martial found Airman (Amn) Brian D. Howard guilty, contrary to his pleas, of (1) one specification of assault of a superior commissioned officer, in violation of Article 89, Uniform Code of Military Justice (UCMJ), 10 U.S.C. § 889 (2018)[1]; (2) one specification of willfully disobeying a superior commissioned officer, in violation of Article 90, UCMJ, 10 U.S.C. § 890 (2018); (3) one specification of insubordinate conduct toward a noncommissioned officer, in violation of Article 91, UCMJ, 10 U.S.C. § 891 (2018); and (4) three specifications of dereliction of duty (one negligent and two willful), in violation of Article 92, UCMJ, 10 U.S.C. § 892 (2018). (R. at 57, 858–59; Entry of Judgment (EOJ).) The panel members sentenced Amn Howard to 6 years' confinement, forfeiture of all pay and allowances, reduction to the grade of E-1, and a dishonorable discharge. (R. at 932; EOJ.) The convening authority took no action on the findings and the sentence. (Convening Authority Decision on Action.)

On 9 April 2024, this Court remanded the case due to missing portions of the verbatim transcript and missing Preliminary Hearing Officer (PHO) exhibits. *United States v. Howard*, No. ACM 40478, 2024 CCA LEXIS 137 (A.F. Ct. Crim. App. 9 Apr. 2024) (unpublished).

Statement of Facts

Background

Amn Howard grew up with the Air Force. (Def. Ex. E at 1.) Both his parents were Airmen, and thus he lived the experience of the military child: moving to New Jersey, Lajes Field, Panama, and

[1] All references to the punitive articles are provided by year. Unless noted otherwise, all references to the UCMJ and the Rules for Courts-Martial (R.C.M.) are to the versions in the *Manual for Courts-Martial, United States* (2019 ed.) [*MCM*].

On 9 April 2024, this Court remanded the case due to missing portions of the verbatim transcript and missing Preliminary Hearing Officer (PHO) exhibits. *United States v. Howard*, No. ACM 40478, 2024 CCA LEXIS 137 (A.F. Ct. Crim. App. 9 Apr. 2024) (unpublished).

Statement of Facts

Background

Amn Howard grew up with the Air Force. (Def. Ex. E at 1.) Both his parents were Airmen, and thus he lived the experience of the military child: moving to New Jersey, Lajes Field, Panama, and Germany. (*Id.* at 1–2.) He joined the Air Force later than most, after a career in medical services and patient care. (*Id.* at 2.) He was excited that his first assignment was overseas at Misawa AB, and that he was stationed with his friend from basic training and technical school, Senior Airman (SrA) DC. (*Id.*)

Yet Amn Howard experienced significant mental health issues while at Misawa AB. Several members of Amn Howard's unit brought their concerns about his mental health to CT, his squadron commander. (R. at 432–33.) Amn Howard's reported behavior, such as speaking to himself when nobody else was around, led CT to order two command-directed evaluations (CDEs). (R. at 433.)

Lt Col EG, a clinical psychologist then at Misawa AB, evaluated Amn Howard in early 2021. (*See* R. at 708, 723.) She explained that, for the military, Amn Howard's "grooming was not what [she] would've expected." (R. at 718.) When he arrived, "he's like jumping down the hallway, running and speeding in after me, and super excited, and super pleasant, and super happy, and talking very fast and

CERTIFICATE OF FILING AND SERVICE

I certify that the original and copies of the foregoing was sent via email to the Court and served on the Government Trial and Appellate Operations Division on 29 September 2024.

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